

any intoxicating liquor on, or in the immediate vicinity of, any premises so licensed as aforesaid, shall be liable, on summary conviction, to a fine not exceeding forty shillings, or to imprisonment, with or without hard labour, for any period not exceeding one month :

Provided always that no person shall be liable to be convicted under this section unless the court is satisfied that he knew or ought to have known the condition of the person in connection with whom the charge is brought.

Court to order persons to be of good behaviour.

11. Where a person is convicted of any offence included, or deemed to be included, in the list of offences mentioned in the First Schedule to the Inebriates Act, 1898, the court may, either in addition to or in substitution for any other penalty, order the offender to enter into a recognizance with or without sureties to be of good behaviour.

Witnesses.

12. In all proceedings under this Act a husband or wife shall be a competent witness.

Short title and application of Act.

13. This Act shall apply to Ireland only, and may be cited as the Summary Jurisdiction (Ireland) Act, 1908.

CHAPTER 25.

An Act to extend the Military Lands Acts to Naval Volunteers. [1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Application of Military Lands Acts to naval volunteers.

1. The Military Lands Acts, 1892 to 1903, shall apply in the case of divisions or companies of the Royal Naval Volunteer Reserves as they apply in the case of volunteer corps, and shall have effect as if they were herein re-enacted and in terms made applicable to such divisions and companies, and in particular as if—

(a) for references to the Secretary of State there were therein substituted references to the Admiralty ;

(b) for references to "military" there were therein substituted references to "naval" ;

(c) for references to sections twenty-four and twenty-five of the Volunteer Act, 1863, there were therein substituted references to those sections as applied to the Royal Naval Volunteer Reserves by the regulations made under the Naval Forces Act, 1903, and set forth in the Schedule to this Act, which regulations are hereby confirmed.

26 & 27 Vict.
c. 65.

3 Edw. 7, c. 6.

Short title.

2. This Act may be cited as the Naval Lands (Volunteers) Act, 1908.

SCHEDULE.

REGULATIONS APPLYING SECTIONS TWENTY-FOUR AND TWENTY-FIVE OF THE VOLUNTEER ACT, 1863.

The officers and men of a division of the Royal Naval Volunteer Reserve may from time to time make rules for the management of the property, finances, and civil affairs of the division, and may alter and repeal any such rules; but any such rules shall not have effect unless and until they shall be approved by the Admiralty, and upon such approval the same shall be binding on all persons.

A copy of the rules in print or writing, or partly in print and partly in writing, certified under the hand of the commanding officer of the division as a true copy of the rules whereof the Admiralty's approval has been notified as aforesaid, shall be conclusive evidence of the rules of the division.

All moneys subscribed by, or to, or for the use of any division, or of any company in such division, and all effects belonging to such division or company respectively, or lawfully used by it, not being the property of any individual officer, petty officer, or man, or member of the instructional staff, and the exclusive right to sue for and recover money due to the division or to any such company as aforesaid, and all lands acquired by such division or company, shall vest in the commanding officer of the division for the time being and his successors in office, with power to him and his successors to sue, to make contracts and conveyances, and to do all other lawful things relating thereto; and any civil or criminal proceedings taken by virtue of the present section by the commanding officer of a division shall not be discontinued or abated by his death, resignation, or removal from office, but may be carried on by and in the name of his successor in office.

CHAPTER 26.

An Act to authorise, for the purpose of Marriages in the United Kingdom, the Publication of Banns and the Issue of Certificates on board His Majesty's Ships in certain cases.
[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Where one of the parties to a marriage intended to be solemnised in England after the publication of banns is an officer, seaman, or marine, borne on the books of one of His Majesty's ships at sea, the banns may be published on three successive Sundays at morning service on board that ship by

Publication of
banns on board
His Majesty's
ships.